

☐ ☐ ☐ Petitioner ☐ ☐ ☐ Respondent ☐ ☐ ☐ Other Parent/Party ☐ ☐ ☐ Other (*specify*):

a. Date: _____ Time: _____ Dept.: _____ Room: _____

b. Address of court _____ same as noted above _____ other (*specify*): _____

a. ☐ Help prevent "immediate harm to the child" under Family Code section 3064, as described in item 3a.

b. ☐ Help prevent immediate risk that a child will be removed from the State of California.

c. ☐ Help prevent immediate loss or damage to property subject to disposition in the case.

d. ☐ Set or change procedures for a hearing or trial.

3. CHILD CUSTODY AND VISITATION (PARENTING TIME)

- (1) ☐ ☐ Has committed acts of domestic violence that are of recent origin or are part of a demonstrated and continuing pattern of domestic violence.
- (2) ☐ ☐ Has committed acts of sexual abuse of the child that are of recent origin or are part of a demonstrated and continuing pattern of sexual abuse.
- (3) ☐ ☐ Has illegal access to firearms or ammunition (including access to firearms or ammunition in violation of state or federal law, a restraining order, a protective order, or an injunction, or condition of probation or parole).
- (4) ☐ ☐ Other (*specify*):

Temporary physical custody, care, and control to:

C. <u>Child's name</u>	<u>Date of Birth</u>	Petitioner	Respondent	Other Party/Parent

THIS IS A COURT ORDER.

PETITIONER: RESPONDENT: OTHER PARENT/PARTY:	CASE NUMBER:
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d. ☐ **Visitation (Parenting Time)**

When the court has granted temporary orders for child custody, it must consider if the best interests of the child require that visitation (parenting time) be suspended, denied, or supervised. Further, the temporary orders for custody, care, and control of the minor children in 3c are subject to the other party's or parties' rights of visitation (parenting time). The temporary orders for visitation (parenting time) are as follows:

☐ See Attachment 3d.

e. **Travel restrictions**

- (1) The party or parties with temporary physical custody, care, and control of minor children **must not remove the minor children from the state of California unless the court allows it after a noticed hearing.**
- (2) ☐ Petitioner ☐ Respondent ☐ Other Parent/Party must not remove their minor children (*specify*):
- (a) ☐ from the state of California.
- (b) ☐ from the following counties (*specify*):
- (c) ☐ other (*specify*):

- f. (1) **Jurisdiction:** This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act (part 3 of the California Family Code, commencing with section 3400).
- (2) **Notice and opportunity to be heard:** The responding party was given notice and an opportunity to be heard as provided by the laws of the State of California.
- (3) **Country of habitual residence:** The country of habitual residence of the child or children is (*specify*):
- ☐ The United States of America ☐ Other (*specify*):
- (4) **If you violate this order, you may be subject to civil or criminal penalties, or both.**

4. ☐ **PROPERTY CONTROL**

- a. ☐ Petitioner ☐ Respondent ☐ Other Parent/Party is given exclusive temporary use, possession, and control of the following property that the parties ☐ own or are buying ☐ lease or rent
- b. ☐ Petitioner ☐ Respondent ☐ Other Parent/Party is ordered to make the following payments on the liens and encumbrances coming due while the order is in effect:
- | | | | |
|---------|------|------------|-----------|
| Pay to: | For: | Amount: \$ | Due date: |
| Pay to: | For: | Amount: \$ | Due date: |
| Pay to: | For: | Amount: \$ | Due date: |
| Pay to: | For: | Amount: \$ | Due date: |

5. ☐ All other existing orders, not in conflict with these temporary emergency orders, remain in full force and effect.

6. ☐ **OTHER ORDERS** (*specify*): ☐ Additional orders are listed in Attachment 6.

Date:

JUDICIAL OFFICER OF THE SUPERIOR COURT

THIS IS A COURT ORDER.